

The legal-exposure landscape

*When a negligently activated change splits the chain and people lose money,
more parties are exposed than most realize:*

Negligence / neg. misrep.

§4.1

Releasing activation code with known bugs and promoting its adoption;
§552 routes around the economic-loss rule (Biakanja on contested facts).

Tortious interference

§4.2

A proponent with documented economic exposure who pushes a splitting change —
especially if the promotion looks instrumental rather than principled.

Fiduciary duty

§4.3

Unsettled, but Tulip Trading (UK Court of Appeal, 2023) confirmed the question is
justiciable (claim discontinued 2024); the developer's process determines it.

Pool operators

§4.4

Pools owe care over signaling, but broad-discretion pool terms blunt the
contract/covenant route; exposure runs through what the pool tells its miners.

Regulatory & exchange

§4.5

Splits trigger income recognition on forked coins (Rev. Rul. 2019-24), custodial
conflicts, and exchange listing calls — not hypothetical; this happened in 2017.

**Following the Section 3 standards is a strong defense against every route.
Compliance is the defense; the score is the exposure (§4.0).**